

CLASS JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

ACQUISITION OF SITE ACCESS FOR ANTENNAS AND ASSOCIATED EQUIPMENT

1. Identification of Agency and Contracting Activity:

Drug Enforcement Administration (DEA)
Office of Acquisition Management (FA)
8701 Morrisette Drive
Springfield, VA 22152

2. Nature and/or description of the action being approved:

This Class Justification for Other than Full and Open Competition (JOFOC) is executed in order to permit DEA contracting officers to use other than full and open competitive procedures for acquisitions of access rights to locations to be used for DEA antenna sites. This Class JOFOC shall become effective upon execution and shall remain in effect through September 30, 2028.

3. Description of the supplies or services required to meet the agency's needs (including estimated value):

DEA has continuing requirement for access right to establish and maintain antenna sites at specified locations in support of DEA law enforcement activities throughout the United States, Puerto Rico, and outlying areas. Multiple antenna sites are needed in order to establish and maintain effective communications for and operational control of DEA operations. When a location for potential antenna site is identified within an area of operation, DEA negotiates with the owner to acquire access rights to mount and maintain DEA antennas and associated equipment. There are several hundred contract actions annually totaling approximately \$3.5 million. The majority of the contract actions does not exceed the simplified acquisition threshold and are processed using simplified acquisition procedures. However, there are also several contract actions that exceed the simplified acquisition threshold and are processed using the procedures prescribed in Part 12 and Part 15 of the Federal Acquisition Regulation (FAR). This requirement is expected to continue for a five-year period and has an aggregate estimated value of \$18.5 million.

4. Identification of the statutory authority permitting the use of noncompetitive procedures:

The statutory authority permitting the use of other than full and open competitive procedures is 41 U.S.C. 3304(a)(1) on the basis that the required rights and services for each antenna site are available from only one responsible source and no other source is capable of satisfying the Government's need.

5. Demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited:

Antenna sites are essential components of communication networks used for DEA operations and are critical to the success of operations and the safety of personnel involved. Each antenna site must be installed in the location that provides optimal antenna coverage across the

channels used for DEA operations with minimal interference from non-DEA equipment and usage. For example, a radio tower on the highest building in a given area might be considered as an antenna site because it would afford the highest degree of antenna coverage with minimal signal interference. Sites are selected based on their potential for providing the highest degree of effective antenna coverage in the areas of operation. Consequently, locations selected for antenna sites are distinguished from other sites due to their unique combination of physical factors, which would optimize communication support for DEA operations.

6. Description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by FAR 5.2, and if not, which exception to FAR 5.2 applies:

Within a given area of operation, field technical personnel survey as many potential site locations as practicable to determine their suitability as antenna sites with the goal of finding the sites with the highest potential for effective communications. In many areas, there may only be one location suitable as an antenna site.

Most requirements for antenna sites do not exceed the micro-purchase threshold and are acquired using micro-purchase procedures, which do not require competition. Any requirements that exceed \$25,000 will be synopsisized on SAM.gov together with a copy of this JOFOD as required by FAR 5.201 or when an exception to the posting requirement is applicable, documentation supporting the authorized exception will be placed in the contract file.

7. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable:

Before awarding any acquisition, the Contracting Officer shall perform price analysis and make an affirmative determination that the price is both fair and reasonable.

8. Description of the market research conducted and the results or a statement of the reason market research was not conducted:

For each requirement for antenna site location, field technical personnel conduct a survey of potential antenna site locations and make a determination of the most advantageous location that is suitable as an antenna site. A summary of the survey efforts and results is provided with the Purchase Request. Surveys are conducted annually for the purpose of wither confirming existing sites as optimal antenna site locations or identifying other, more optimal sit locations.

9. Any other facts supporting the use of other than full and open competition:

Antenna site surveys takes into consideration the relative merits offered by the various potential antenna site locations. However, conducting competitive procedures in the manner prescribed in FAR 13.106 or Part 15 is both technologically impracticable, inefficient, and cost prohibitive.

10. Listing of the sources, if any, that expressed, in writing, an interest in the acquisition:

No other sources have expressed an interest in these requirements in writing.

11. Statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required:

Because of the nature of the requirement, there are no other actions that can be reasonably taken to remove barriers to competition.

12. Certifications

Technical

I hereby **certify** that the supporting data provided in this justification are accurate and complete to the best of my knowledge and belief.

NICHOLAS FERGUSON  Digitally signed by NICHOLAS FERGUSON
Date: 2023.06.15 09:03:33 -04'00'

Contracting Officer's Representative
Office of Investigative Technology

MICHAEL MACHAK  Digitally signed by MICHAEL MACHAK
Date: 2023.06.15 11:43:12 -04'00'

Deputy Assistant Administrator/Special Agent in Charge
Office of Investigative Technology

Contracting Officer

I hereby **certify** that the facts and representations included in this Class JOFOC are accurate and complete to the best of my knowledge and belief and that the anticipated cost to the Government of the acquisitions included under this Class JOFOC will be determined to be fair and reasonable.

KAITLYN MAHAFKEY  Digitally signed by KAITLYN MAHAFKEY
Date: 2023.06.15 11:57:41 -04'00'

Contracting Officer
Office of Acquisition Management

13. Concurrences and Approval:

I have completed a review of the proposed acquisition and hereby **concur** with the facts set forth above.

NANAESI AMOO  Digitally signed by NANAESI AMOO
Date: 2023.06.15 16:37:14 -04'00'

Chief, Acquisition Management Section (FAC)
Office of Acquisition Management

I have completed a review of the proposed acquisition and hereby **concur** with the facts set forth above.

RANDALL JONES Digitally signed by RANDALL JONES
Date: 2023.06.16 09:27:28 -04'00'

Competition Advocate
Office of Acquisition Management

Base on the foregoing, I hereby **approve** this Class JOFOC.

JEFFREY SAYLOR Digitally signed by JEFFREY SAYLOR
Date: 2023.06.16 09:31:58 -04'00'

Head of the Contracting Activity and
Deputy Assistant Administrator
Office of Acquisition Management